

24STCV33669 24STCV33669

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-07-10

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Case Number: 24STCV33669 Hearing Date: July 10, 2026 Dept: 406

MARCO DAVALOS,

Plaintiff,

v.

TENDA TECHNOLOGY, INC., et al.,

Defendants.

Case No.: 24STCV33669

Hearing Date: July 10, 2026

[TENTATIVE] order RE:

defendant deng ping quan's motion to quash service of summons

BACKGROUND

On December 19, 2024, Plaintiff Marco Davalos filed this employment action against Defendants Tenda Technology, Inc. (Tenda), Deng Ping Quan (Quan), and Will Wang (Wang).

Wang was personally served on June 24, 2025.

Tenda was served on October 31, 2025 through personal delivery to the California Secretary of State, as authorized by the Court's order on October 29, 2025.

Quan was served by publication in the San Gabriel Valley Tribune as of November 3, 2025, as authorized by the Court's order on October 3, 2025.

On March 5, 2026, the Court entered default against all three Defendants.

On June 5, 2026, Quan filed the instant motion to quash service of summons. Plaintiff filed an opposition on June 26, 2026. Quan filed a reply on July 2, 2026.

LEGAL STANDARD

"[T]he court in which an action is pending has jurisdiction over a party from the time summons is served on him as provided by Chapter 4 (commencing with Section 413.10)." (Code Civ. Proc, § 410.50(a).) "[A] court acquires jurisdiction over a party by proper service of process or by that party's general appearance." (In re Jennifer O. (2010) 184 Cal.App.4th 539, 547.) Actual notice of a lawsuit is not a substitute for proper service of process. (Abers v. Rohrs (2013) 217 Cal.App.4th 1199, 1206.) A defendant may serve and file a notice of motion to quash service of summons on the ground that the court lacks jurisdiction. (Code Civ. Proc., § 418.10(a).)

DISCUSSION

The sole basis of Quan's motion is that Quan was not served according to the Hague Convention. (Mtn. 2:20-3:10.) However, the Convention "shall not apply where the address of the person to be served with the document is not known." (People v. Mendocino County Assessor's Parcel No. 056-500-09 (1997) 58 Cal.App.4th 120, 125.) "Hence, the Convention does not apply to situations in which the whereabouts of the defendant cannot be ascertained despite reasonable diligence." (Ibid.)

"The only method of service under California law which does not require the transmission of documents abroad, and consequently does not implicate the Hague Service Convention, is service of summons by publication where the party's address remains unknown during the publication period despite the exercise of reasonable diligence." (Kott v. Superior Court (1996) 45 Cal.App.4th 1126, 1136.) Thus, where a trial court permits service by publication, and the defendant's whereabouts remain unknown throughout the publication period, the Convention is not implicated. (People v. Mendocino County, supra, 58 Cal.App.4th at p. 125.)

Here, the Court granted Plaintiff's request to serve Quan by publication because Plaintiff established that Quan could not be located through reasonable diligence. Quan was in fact not located throughout the publication period. Thus, the Hague Convention is not implicated. The service was proper.

In reply, Quan argues that Plaintiff never attempted to locate him in China even though Quan has never concealed the fact that he resides in China. However, Quan cites no evidence that Plaintiff actually knew or should have known that Quan was in China. Plaintiff is not imputed with knowledge of Quan's whereabouts just because Quan did not actively conceal his location. The law does not require plaintiffs to be clairvoyant. The Court already found that Quan could not be located despite reasonable diligence when it granted Plaintiff's application to serve Quan through publication. The application was supported by the thorough declaration of Plaintiff's counsel. (See 10/02/25 Declaration of Alvin Chang.)

Therefore, the Court accepts that Quan's whereabouts were unknown to Plaintiff and could not be ascertained with reasonable diligence. As the court in People v. Mendocino County stated: "The trial court granted the request [for publication] and, during the publication period, appellant's whereabouts continued to remain unknown. The Hague Service Convention was therefore not implicated." (People v. Mendocino County, supra, 58 Cal.App.4th at p. 125.) This is the precise situation here. Accordingly, service by publication was proper, and Plaintiff was not required to comply with the Hague Convention.

CONCLUSION

Defendant Deng Ping Quan's motion to quash service of summons is DENIED.

MARCO DAVALOS,

Plaintiff,

v.

TENDA TECHNOLOGY, INC.,

et al.,

Defendants.

Case No.: 24STCV33669

Hearing Date: July 10, 2026

[TENTATIVE]

order RE:

defendants tenda technology, inc.'s and

deng ping quan's motion to set aside default

BACKGROUND

On December 19, 2024, Plaintiff

Marco Davalos filed this employment action against Defendants Tenda Technology,

Inc. (Tenda), Deng Ping Quan (Quan), and Will Wang (Wang).

Wang was personally served on June

24, 2025.

Tenda was served on October 31, 2025

through personal delivery to the California Secretary of State, as authorized by the Court's order on October 29, 2025.

Quan was served by publication in

the San Gabriel Valley Tribune as of November 3, 2025, as authorized by the Court's order on October 3, 2025.

On March 5, 2026, the Court entered default against all three Defendants.

On June 4, 2026, Tenda and Quan

filed the instant motion to set aside the default. Plaintiff filed an opposition on June 26, 2026. Defendants filed a reply on July 2, 2026.

LEGAL STANDARD

"The court may, upon any terms as may be

just, relieve a party or his or her legal representative from a judgment,

dismissal, order, or other proceeding taken against him or her through his or

her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., §

473(b).) Because the law favors resolution on the merits, doubts are resolved

in favor of the party requesting relief, and only "slight evidence" is needed

to justify relief. (Caldwell v. Methodist Hospital (1994) 24 Cal.App.4th

1521, 1524.) "[C]ourts have often granted relief pursuant to the discretionary

relief provision of section 473 if no prejudice to the opposing party will

ensue.” (Comunidad en Accion v. Los Angeles City Council (2013) 219

Cal.App.4th 1116, 1132-1133.)

DISCUSSION

Tenda terminated its operations in

January 2024, approximately one year prior to the filing of this lawsuit. (Quan

Decl. ¶ 11.) All of Tenda’s U.S. employees were laid off, and Tenda does not

maintain a physical address. (Id., ¶¶ 12-13.) Quan has been Tenda’s sole

acting agent, but he resides in China. (Id., ¶¶ 3-4, 14.) Quan first

discovered this lawsuit in March 2026 upon being informed by Tenda’s former

CFO. (Id., ¶¶ 21, 25.) Being in China, Quan has faced difficulty finding

legal representation for this action. (Id., ¶ 27.)

The record sufficiently demonstrates

that the default was caused by Defendants’ mistake, inadvertence, surprise, or

excusable neglect. Plaintiff does not explain how he would be prejudiced from

setting aside the default. Plaintiff only argues that he “will be prejudiced if

he is not reimbursed for the amount of time and costs expended in obtaining

Defendants’ entry of default.” (Opp. 8:17-18.) However, that is a separate

issue and not the type of prejudice that would prevent setting aside the

default.

In sum, the Court finds that the

default was caused by Defendants' mistake, inadvertence, surprise, or excusable

neglect. The Court further finds that Plaintiff would not be prejudiced from

setting aside the default. Therefore, relief is warranted.

CONCLUSION

Defendants Tenda Technology, Inc.'s

and Deng Ping Quan's motion to set aside default is GRANTED.